BUREAU OF INFORMATION
MAR 31 1919
DEPARTMENT OF STATE

ORDER BY FRANK L. POLK

UNDER AUTHORITY OF EXECUTIVE ORDER OF DECEMBER 5, 1918.

AN ORDER CONCERNING THE SALE AND CONVEYANCE OF CERTAIN LETTERS PATENT OF THE UNITED STATES, APPLICATIONS FOR LETTERS PATENT, AND RIGHTS, INTERESTS AND BENEFITS UNDER CERTAIN AGREEMENTS MORE PARTICULARLY HEREINAFTER DESCRIBED, DETERMINED TO BELONG TO, OR TO BE HELD FOR, BY, ON ACCOUNT OF, OR ON BEHALF OF, OR FOR THE BENEFIT OF, PERSONS DETERMINED TO BE ENEMIES NOT HOLDING A LICENSE OR LICENSES GRANTED BY THE PRESIDENT WITHIN THE PURVIEW OF THE "TRADING WITH THE ENEMY ACT" AND THE AMENDMENTS THERETO

By virtue of the authority vested in the President by an Act of Congress entitled "An Act to Define, Regulate and Punish Trading with the Enemy and for Other Purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendments to said Act embodied in "An Act Making Appropriations to Supply Urgent Deficiencies in Appropriations for the Fiscal Year Ending June 30, 1918, and Prior Fiscal Years on Account of War Expenses and for Other Purposes", approved March 28, 1918, and the amendments to said Act embodied in "An Act Making Appropriations to Supply Deficiencies in Appropriations for the Fiscal Year Ending June 30, 1919, and Prior Fiscal Years on Account of War Expenses and for Other Purposes", approved November 4,

3016-I

1918, to make certain orders, such as that herein contained, which authority has been delegated to me by the Executive Order No. 3016 and signed by the President on the 3rd day of December, 1918, I hereby make the following rule, determination, and order:

The Alien Property Custodian may sell to Locomotive Superheater Company at private sale, without public or other advertisement, at such time and upon such terms and conditions as to the Alien Property Custodian or his authorized agent may seem proper, the following described property heretofore acquired by and now vested in the Alien Property Custodian by virtue of his requirements;

(a) All of the rights, interests and benefits created in favor of or conferred upon Schmidt'sche Heissdampf Gesellschaft, m. b. H., by two certain agreements dated respectively the 10th day of November, 1910, and the 7th day of August, 1911, between said Schmidt'sche Heissdampf Gesellschaft, m. b. H., and Locomotive Superheater Company, together with all rights and interests created and existing in favor of or conferred upon said Schmidt'sche Heissdampf Gesellschaft, m. b. H., in and to any royalties or sum or sums of money hereafter accruing, in favor of, or becoming due or payable to said Schmidt'sche Heissdampf Gesellschaft, m. b. H. under the terms of said agreements, and also all claims and demands whatsoever, created or existing in favor of or conferred upon said Schmidt'sche Heissdampf Gesellschaft, m. b. H., against Locomotive Superheater Company, all as more

3016-J.

fully set forth in the requirements of the Alien Property Custodian relating to said rights, interests and benefits;

(b) The following letters patent of the United States and applications for letters patent of the United States, subject to the rights of Locomotive Superheater Company, as more fully set forth in the requirements of the Alien Property Custodian relating thereto:

Patent No.	Date of Issue	Title
946,466	January 11, 1910.	SUPERHEATER FOR STEAM BOILERS
1,106,734	August 11, 1914.	SMOKE-TUBE SUPERHEATER
1,074,783	October 7, 1913.	METHOD OF MAKING U-SHAPED PIPE-BENDS
1,075,201	October 7, 1913.	METHOD OF MAKING U-SHAPED PIPE-BENDS
1,114,812	October 27, 1914.	SUPERHEATER FOR LOCOMOTIVE BOILERS
1,120,764	December 15, 1914.	LOCOMOTIVE-BOILER WITH SMOKE-TUBE SUPERHEATER
1,129,915	March 2, 1915.	STEAM-SUPERHEATER
1,133,017	March 23, 1915.	METHOD OF MAKING U-SHAPED PIPE-BENDS
1,164,638	December 21, 1915.	DIE FOR U-SHAPED PIPE-BENDS
1,049,155	December 31, 1912.	SMOKE-TUBE SUPERHEATER
1,063,394	June 3, 1913.	SMOKE-TUBE SUPERHEATER
1,072,174	September 2, 1913.	WATER TUBE BOILER
1,072,194	September 2, 1913.	APPARATUS FOR COOLING SUPERHEATER PIPES
1,073,305	September 16, 1913.	SMOKE-TUBE SUPERHEATER
1,073,954	September 23, 1913.	SUPERHEATER FOR WATER-TUBE BOILERS
1,074,300	September 30, 1913.	STEAM-SUPERHEATER
1,112,868	October 6, 1914.	CONNECTING MEMBER FOR SUPERHEATER-ELEMENT ENDS

3016-J

Patent No.	Date of Issue	Title
1,116,646	November 10, 1914.	SMOKE-TUBE SUPER-HEATER
1,139,601	May 18, 1915.	SUPERHEATER
1,142,370	June 8, 1915.	ARRANGEMENT IN STEAM-ENGINES FOR TAKING WORKING STEAM FROM THE ENGINE CYLINDERS
1,168,748	January 18, 1916.	WATER-TUBE BOILER
1,172,407	February 22, 1916.	COOLING ARRANGEMENT FOR FLUE-TUBE SUPER-HEATER ELEMENTS
1,181,863	May 2, 1916.	DOUBLE-TUBE SUPER-HEATER
1,208,405	December 12, 1916.	SUPERHEATER ELEMENTS FOR FLUE-TUBE BOILERS
1,047,710	December 17, 1912.	DEVICE FOR REMOVING WATER FROM HEATED PISTONS
1,068,368	July 22, 1913.	QUICK ACTING STEAM GENERATOR
1,090,417	March 17, 1914.	ENGINE GOVERNOR
1,092,543	April 7, 1914.	ENGINE
1,107,204	August 11, 1914.	AUTOMATIC ENGINE GOVERNOR
1,166,007	December 28, 1915.	QUICK ACTING STEAM GENERATOR
1,167,527	January 11, 1916.	ENGINE GOVERNOR WITH AUTOMATIC INLET VALVE
1,188,863	May 9, 1916.	FAN FOR INDUCED DRAFT
1,183,417	May 16, 1916.	BLOWER DEVICES FOR CLEANING TUBES
1,296,055	March 4, 1919.	SUPERHEATER FOR MARINE FIRE OR SMOKE TUBE BOILERS
1,179,412	April 18, 1916.	MARINE WATER TUBE BOILER AND SUPERHEATER
989,812	April 18, 1911.	HIGH-PRESSURE STEAM-BOILERS

APPLICATIONS

Serial No.	Filing Date	Title
4,458	January 26, 1915.	POWER ENGINE PLANT

3016-J

Serial No.	Filing Date	Title
72,741	January 18, 1916.	METHOD FOR COOLING THE PISTON OF AN INTERNAL COMBUSTION ENGINE
74,080	January 25, 1916.	CYCLIC WORKING PROCESS FOR STEAM ENGINES
74,146	January 25, 1916.	CYCLIC WORKING PROCESS FOR STEAM ENGINES
50,282	September 11, 1915.	FIELD TUBE SUPERHEATER ELEMENT, ETC.
113,090	August 4, 1916.	SUPERHEATER FOR MARINE FIRE OR SMOKE TUBE BOILERS
31,794	June 2, 1915.	PISTON PACKING RINGS
79,632	August 4, 1916.	COMBINED MARINE WATER TUBE BOILER AND SUPERHEATER

My reasons in the public interest for the foregoing determination, order, rule and regulation are:

(a) The property described above is not customarily sold and cannot usually be sold to advantage at public sale after public or other advertisement;

(b) Locomotive Superheater Company is a corporation the majority of the stock of which has been sold by the Alien Property Custodian to the Director General of Railroads and is therefore controlled by the United States;

(c) The property above described is subject to such equitable rights in favor of Locomotive Superheater Company as to render it unsalable except to said Locomotive Superheater Company;

(d) The conveyance above described to the Locomotive Superheater Company is necessary to permit

3016-J

the said Locomotive Superheater Company to conduct its business, in which the United States is interested, without interference from patent owners who are enemy nationals and enemies as defined by the common law and the "Trading with the Enemy Act".

Frank L. Polk

Washington, D. C.,
March 24, 1919.

3016-J